

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
AUGUST 26, 2026
8:30 a.m.

2. DUSTIN NUNNERY V. SUZANA NUNNERY

25FL0486

This matter is on calendar for hearing of the Request for Order (RFO) filed by the Respondent on May 29, 2026, to award guideline child support and spousal support. The hearing was originally set for July 15, 2026. On that date, the court granted Respondent's unopposed request for a continuance. The court ordered the parties to file any supplemental declarations no later than August 19, 2026.

On August 13, 2026, Respondent filed a Reply Declaration and current Income and Expense Declaration (I&E), copies of which were electronically served upon Petitioner that same day per the proof of service, also filed August 13, 2026.

On August 19, 2026, Petitioner filed a Supplemental Declaration, a copy of which was electronically served upon Respondent that same day per the proof of service, also filed August 19, 2026.

The court finds Petitioner's current gross monthly income to be \$14,046.00 (rounded down from \$14,046.34 to the nearest dollar amount). Petitioner's paystub attached to his supplemental declaration filed August 19, 2026, shows a year-to-date (through June 30, 2026) total gross pay of \$84,278.04. (Petitioner's Supp. Decl., filed Aug. 19, 2026, Ex. C.) This amount reflects the amount of money Petitioner has earned through regular pay, workers compensation, and disability benefits. (See, Resp. Decl., ¶ 8.) Based on Petitioner's declaration, the court does not attribute any rental income to him.

The court finds Respondent's current gross monthly income to be \$8,177.00 (rounded down from \$8,177.21 to the nearest dollar amount). Respondent's paystubs attached to her I&E filed August 13, 2026, show a year-to-date (through July 31, 2026) gross total pay of \$16,354.41. Respondent declares she was off work until June 01, 2026. She worked limited hours during June and July 2026. Thus, the court divides the year-to-date total of \$16,354.41 by 2 (representing the two months, June and July 2026, that Respondent worked), which equals \$8,177.21. The court credits Respondent \$600.00 a month for necessary business expenses related to overnight travel, as identified in her I&E filed August 13, 2026. Respondent's I&E also indicates she has been off work again since July 29, 2026, and has a potential return date of August 31, 2026. However, the court does not incorporate this most recent time off of work into its calculation for two reasons. First, the doctor's note attached to Respondent's supplemental declaration filed August 13, 2026, indicates that Respondent's return-to-work date (without limitations) is a mutual decision to be made by the doctor and Respondent, as opposed to the doctor alone. Respondent's next follow up appointment with the doctor is September 11, 2026. Second, Respondent was able to travel internationally with the parties' child during the period of time where Respondent claims to be unable to fully work.

For purposes of calculating child support, the court finds that Petitioner's custody timeshare is 70 percent and Petitioner's custody timeshare is 30 percent, reflecting the current timeshares ordered by the court. Respondent claims that Petitioner is not exercising his full timeshare. Instead, she claims Petitioner has custody of the child

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approximately 10 percent of the time and Respondent has custody of the child approximately 90 percent of the time. (Respondent's RFO at pp. 6–7; Respondent's Reply Decl., filed Aug. 13, 2026, at 4:24–28.) In support of this claim, Respondent declared she would submit a detailed parenting time log to the court. (Respondent's RFO at p. 6; Respondent's Reply Decl., filed Aug. 13, 2026, at 5:1–2.) As of the time this tentative ruling was prepared, however, Respondent had not submitted said time log. In the absence of such evidence, the court accepts Petitioner's declaration that he is using his full 30 percent custody timeshare.

As shown in the attached XSpouse calculation printout, Petitioner is ordered to pay Child Support to the Respondent in the amount of \$1,046.00, and Spousal Support to the Respondent in the amount of \$262.00, beginning June 01, 2026, and the first of each month thereafter until further order of the court.

TENTATIVE RULING #2: PETITIONER IS ORDERED TO PAY CHILD SUPPORT TO THE RESPONDENT IN THE AMOUNT OF \$1,046.00, AND SPOUSAL SUPPORT TO THE RESPONDENT IN THE AMOUNT OF \$262.00, BEGINNING JUNE 01, 2026, AND THE FIRST OF EACH MONTH THEREAFTER UNTIL FURTHER ORDER OF THE COURT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	0	1	2026			
% time with NCP	30.00 %	0.00 %				
Filing status	SINGLE	HH/MLA	GUIDELINE	Comb. net spendable	15410	15410
# exemptions	1 *	2 *	Nets(adjusted)	Percent change	0%	0%
Wages+salary	14046	8177	Father	Father		
Self-employed income	0	0	Mother	Payment cost/benefit	-1307	-1307
Other taxable income	0	0	Total	Net spendable income	7381	7381
TANF+CS received	0	0	Support	Change from guideline	0	0
Other nontaxable income	0	0	Addons	% of combined spendable	48%	48%
New spouse income	0	0	Guideln CS	% of saving over guideline	0%	0%
401(k) employee contrib	0	0	Alameda SS	Total taxes	4430	4430
Adjustments to income	0	0	Total	Dep. exemption value	0	0
SS paid prev marriage	0	0	-	# withholding allowances	0	0
CS paid prev marriage	0	0		Net wage paycheck	9123	9123
Health insurance	325	0		Mother		
Other medical expense	0	0		Payment cost/benefit	1307	1307
Property tax expense	0	0		Net spendable income	8029	8029
Ded interest expense	0	0	Proposed	Change from guideline	0	0
Charitable contributions	0	0	Tactic 9	% of combined spendable	52%	52%
Misc tax deductions	0	600	CS	% of saving over guideline	0%	0%
Qual bus income ded	0	0	SS	Total taxes	1455	1455
Required union dues	0	0	Total	Dep. exemption value	0	0
Mandatory retirement	603	0		# withholding allowances	0	0
Hardship deduction	0 *	0 *	Saving	Net wage paycheck	6281	6281
Other GDL deductions	0	0	Releases			
Child care expenses	0	0				

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: **ON**

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	30 - 70	0	0	0	Father	1046	Father	1046	Father
	30 - 70	0	0	0	Father	1046	Father	1046	Father

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3. GARY RIGGS V. ESTHER RIGGS

SFL20210121

This matter is before the court for a five-year dismissal hearing under Code of Civil Procedure section 583.310, which provides, “An action shall be brought to trial within five years after the action is commenced against the defendant.” (Code Civ. Proc., § 583.310.) The action was filed on September 20, 2021. Therefore, the instant hearing is premature by a few weeks.

The court, on its own motion and in the interest of judicial economy, continues the hearing to September 23, 2026. The clerk is directed to serve notice of the continued hearing upon the parties.

TENTATIVE RULING #3: THE COURT, ON ITS OWN MOTION AND IN THE INTEREST OF JUDICIAL ECONOMY, CONTINUES THE HEARING TO 8:30 A.M., WEDNESDAY, SEPTEMBER 23, 2026, IN DEPARTMENT 12. THE COURT CLERK IS DIRECTED TO SERVE NOTICE OF THE CONTINUED HEARING UPON THE PARTIES.